

Shailendra Kumar Mishra vs The State Of Madhya Pradesh on 11 April, 2023

Author: Deepak Kumar Agarwal

Bench: Deepak Kumar Agarwal

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IN THE HIGH COURT OF MADHYA PRADESH
AT GWALIOR
BEFORE
HON'BLE SHRI JUSTICE DEEPAK KUMAR AGARWAL
ON THE 11th OF APRIL, 2023
MISC. CRIMINAL CASE No. 41915 of 2022

BETWEEN: -

1. SHAIENDRA KUMAR MISHRA S/O SURESH KUMAR MISHRA, AGED ABOUT 36 YEARS, OCCUPATION: PRIVATE JOB RESIDENT OF Q-186 SHATABDIPURAM POLICE STATION MAHARAJPURA, GWALIOR (MADHYA PRADESH)
2. SURESH KUMAR MISHRA S/O LATE SHRIPAL MISHRA, AGED ABOUT 62 YEARS, OCCUPATION: AGRICULTURIST RESIDENT OF Q 186 SHATABDIPURAM POLICE THANA MAHARAJPURA, GWALIOR (MADHYA PRADESH)
3. PREMADEVI MISHRA W/O SURESH KUMAR MISHRA, AGED ABOUT 60 YEARS, OCCUPATION: HOUSE WIFE RESIDENT OF Q 186 SHATABDIPURAM POLICE THANA MAHARAJPURA, GWALIOR (MADHYA PRADESH)
4. YOGENDRA MISHRA S/O SURESH KUMAR MISHRA, AGED ABOUT 29 YEARS, OCCUPATION: SERVICE RESIDENT OF Q 186 SHATABDIPURAM POLICE THANA MAHARAJPURA, GWALIOR (MADHYA PRADESH)
5. SMT. RAJANI MISHRA W/O YOGENDRA MISHRA, AGED ABOUT 28 YEARS, OCCUPATION: HOUSE WIFE RESIDENT OF Q 186 SHATABDIPURAM POLICE THANA MAHARAJPURA, GWALIOR (MADHYA PRADESH)
6. BRAJMOHAN MISHRA S/O SURESH KUMAR MISHRA, AGED ABOUT 38 YEARS, OCCUPATION: AGRICULTURIST RESIDENT OF VILLAGE RAIPURA POLICE THANA BAHORI, BHIND

(MADHYA PRADESH)

7. MUNNALAL MISHRA S/O LATE SHRIPAL MISHRA,
AGED ABOUT 66 YEARS, RESIDENT OF B.L.C.
TOWER JHARNESHWAR COLONY, HOSANGBAD

Signature Not Verified
Signed by: MAHENDRA
BARIK
Signing time: 4/13/2023
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ROAD, BHOPAL (MADHYA PRADESH)

(SHRI AWDHESH SINGH BHADAURIA, LEARNED COUNSEL FOR THE
PETITIONERS)

AND

1. THE STATE OF MADHYA PRADESH INCHARGE
POLICE STATION THROUGH POLICE STATION
MAHARAJPURA DISTRICT GWALIOR (MADHYA
PRADESH)
2. SMT. NISHA MISHRA W/O SHRI SHAILENDRA
KUMAR MISHRA, AGED ABOUT 35 YEARS,
OCCUPATION: HOUSE WIFE RESIDENT OF A.M. 33
DEENDAYAL NAGAR, DISTRICT GWALIOR
(MADHYA PRADESH)

(SMT. PADMSHRI AGRAWAL- LEARNED COUNSEL FOR THE
RESPONDENT NO.1- STATE AND SHRI MEHMOOD KHAN, LEARNED
COUNSEL FOR THE RESPONDENT NO.2- COMPLAINANT)

This PETITION coming on for HEARING this day, the Court
the following:

ORDER

By this petition u/S 482 of CrPC, petitioners seeking quashment of FIR vide Crime No.473 of 2022 registered at PS Maharajpura, District Gwalior for offences punishable under Sections 498-A, 323, 34 and enhanced Sections 354, 294, 506 of IPC and under Section 4 of Dowry Prohibition Act as well as seeking quashment of other consequential criminal proceedings arising out of aforesaid crime in connection with RCT No.5005 of 2002 pending before Court of JMFC, Gwalior.

(2) In brief, facts of the case are that on 20-06-2022 at about 05:00 pm, complainant (herein respondent No.2) Smt. Nisha Mishra lodged a written complaint at Police Station Maharajpura against her in-laws alleging therein that her husband Shailendra Kumar Mishra is aged about 35 years and she resides with her husband at Phase-II, Amaltash Colony. Her marriage was solemnized in the year 2013 as per Hindu rites and rituals. She is having a six-year old daughter whose name is Vedika Rani Mishra. Previously, she used to live with her husband at Bangalore and Faridabad. Due

to lock-down in the year 2020 they came back to Gwalior. After her marriage, her mother-in-law Premadevi Mishra, father-in-law Suresh Kumar Mishra, elder brother-in-law (jeth) Brijmohan Mishra and brother-in-law (Devar) Yogendra Mishra used to taunt her due to non-fulfillment of insufficient dowry. When she used to complain of it to her husband, her husband did not pay any heed but she used to tolerate it. she used to tolerate it. On 20-06-2022, at around 09:00 am, when she requested her husband for bringing Puja articles, her husband frightened her and committed marpeet with her by which she suffered injuries on her hands and stomach. Her inlaws did not try to intervene in the matter. On her complaint, FIR vide Crime No.473 of 2022 for offence under Sections 498-A, 323, 34 of IPC and Section 4 of Dowry Prohibition Act was registered at Police Station Maharajpura against her inlaws, i.e. her husband Shailendra Kumar Mishra (herein petitioner No.1), mother-in-law Smt. Premadevi Mishra (herein petitioner no.2), father-in-law Suresh Kumar Mishra (herein petitioner no.3), brother-in-law Yogendra Mishra (herein petitioner No.4) and elder brother-in-law Brijmohan Mishra (herein petitioner No.6). Thereafter, she was sent for medical examination and as per the medical report, contusion and swelling were found on the right wrist and also swelling on right skull with pain was found. Matter was investigated and during investigation, another written complaint was filed by complainant on 27-06-2022 before the Police Incharge, PS Mahrajpura alleging therein that on 20-06-2022 her inlaws along with elder brother of her father-in-law, namely, Munnalal Mishra (herein petitioner No.7) had committed marapeet with her and her brother-in-law Yogendra Mishra used to molest her. On the basis of her complaint, the statements of complainant were again recorded without assigning any reason. Thereafter, other family members of in-laws of complainant were added as accused. After completion of investigation, charge sheet was filed before the Court of JMFC, Gwalior by which, the Court of JMFC took cognizance against the petitioners in connection with RCT No.5005 of 2022 vide Annexure P-2.

(3) It is contended by Counsel for the petitioners that under the false pretext the impugned FIR has been lodged by the complainant. In fact, on the date of alleged incident i.e. on 20-06-2022 some quarrel took place between complainant and her husband Shailendra Mishra over purchase of Puja articles. Although her husband who had sustained injuries, had also gone to the Police Station Maharajpura for lodging an FIR but the police did not register FIR but registered the matter vide NCR No.131 of 2022 (Annexure P-3). As per his MLC, he had sustained some injuries caused by hard and blunt object. It is further contended that petitioner no.1 husband of the complainant on 28-06-2022, 30-06-2022 and 07-07-2022 had made various complaints before the higher police authorities regarding the behaviour and attitude of his wife/complainant towards his whole family. It is further contended that petitioner No.6 Munnalal Mishra who is the elder brother of the father-in-law of complainant is residing separately at Bhopal and the elder brother-in-law (jeth) of complainant Brijmohan Mishra is residing with his family at his ancestral village Rapura District Bhind by looking after the agricultural work. The brother-in-law of complainant Yogendra Mishra is also working in IB Sector at Itanagar (Arunachal Pradesh). Initially the complaint/FIR was lodged on 20-06-2002 by the complainant and after seven days again the complainant made another complaint on 27-06-2022 in which either there is any allegation made against elder brother of father-in-law of complainant, namely, Munnalal Mishra or against her devrani Smt. Rajni Mishra (wife of Yogendra Mishra) and thereafter, on 26-07-2022 a majid statement of the complainant was recorded in which she had made false allegation against her devrani Smt. Rajni Mishra and brother-in-law Yogendra Mishra stating therein that on 12-04-2022 Yogendra Mishra had molested

her while she was in the kitchen room and her devrani Smt. Rajni Mishra had also abused her on the date of alleged incident i.e. on 20-06-2022. This fact was not mentioned by the complainant in her initial complaint or FIR lodged on 20-06-2022 which crystal clear that the complainant has lodged FIR afterthoughts as well as with mala fide intention to stigmatize the reputation of whole family of her inlaws. On which date and time demand of dowry or harassment was made by her laws, this fact was also not mentioned either in the complaint or FIR. It is further submitted that the father-in-law and mother-in-law of the complainant are old-aged persons being 62 and 60 years and they have nothing to do with the family affairs of the complainant and her husband. The younger brother-in-law along with his family is living separately on the ground floor of their house. It is contended that the whole family should not be roped in only on the basis of omnibus and false allegations unless specific instances of their involvement in the offence are made out. It is further contended that now- a-days, there is an increasing tendency in the society to over-implicate the near and dear relatives of husband so as to pressurize the husband. The impugned FIR has been lodged with an ulterior motive only on the basis of vague and omnibus allegations. Therefore, on the basis of bald allegations, the petitioners cannot be prosecuted and the impugned FIR has been lodged against petitioners without conducting a preliminary enquiry properly and squarely by the police authorities. Therefore, complaint is not bona fide in nature and has been filed with an oblique motive by complainant. The complaint made by complainant is a clear abuse of process of law. It is further contended that the prosecution proceedings against the petitioners are if allowed to continue in the Court, then it would be a sheer abuse of process of law and it would cause harassment and torture to the petitioners without any fault on their parts. It is further contended that regarding misusing provisions of Section 498-A of IPC and Dowry Prohibition Act, the Hon'ble Apex Court has observed in detail in the matter of Rajesh Sharma vs. State of UP (208) 10 SCC 472. By relying on the judgments passed by the Hon'ble Supreme Court in the case of Kans Raj vs. State of Punjab (2000) 5 SCC 207, Geeta Mehrotra vs. State of UP (2012) 10 SCC 741 and Preeti Gupta vs. State of Jharkhand (2010) 7 SCC 667, it is contended by learned counsel for the petitioners that the allegations made against the petitioners are wholly bald as well as omnibus and have apparently been made to falsely implicate them. Impugned FIR has been registered only to harass and torture the petitioners. Unless and until there are specific allegations against them, they should not be compelled to face trial. Therefore, in view of allegations levelled in FIR itself which are vague and omnibus, the same deserves to be quashed and as a consequence thereof, the charge sheet as well as other consequential proceedings arising out of aforesaid crime deserve to be quashed.

(4) On the other hand, Counsel for the respondent as well as complainant opposed the contentions of petitioners and submitted that there are sufficient allegations against the petitioners for their prosecution. There is prima facie material available on record against them. Hence, it is not a proper case in which inherent jurisdiction should be invoked. Petition is liable to be dismissed as charge sheet has been filed and legitimate prosecution may not be stifled in the midway.

(5) Heard counsel for the parties and documents available on record. (6) In the case of matrimonial disputes, it will be seen as to how to deal with a petition under Section 482 of CrPC for quashing FIR or complaint or charge sheet as well as other consequential criminal proceedings. The Hon'ble Apex Court in the matter of Kans Raj (supra) has specifically observed that a tendency has developed for roping in all relations of husband on the part of wife. Mere naming them in the FIR is not enough to

summon them in the absence of any specific role and material to support such role. Similarly, in the case of Geeta Mehrotra (supra), the Hon'ble Apex Court has further observed that if in a case of dowry related offences, the names of husband's relatives are casually mentioned in FIR and the contents of it, do not disclose their active involvement and cognizance of matter against them would not be justified. Further, in the matter of Preeti Gupta (supra), the Hon'ble Apex Court has also observed that it is a matter of common experience that most of complaints under Section 498-A of IPC are filed in the heat of moment over trivial issues without proper deliberations and, therefore, such complaints are not even bone fide and are filed with oblique motive.

(7) The Court is not expected to go into veracity of rival versions but where on the face of it allegations are absurd or do not make out any case of it and criminal proceedings are abuse of Court's process, quashing jurisdiction under Section 482 of CrPC can be exercised.

(8) If the entire allegations made by complainant in her complaint are considered in the light of judgments passed by the Hon'ble Apex Court in the above cited cases, then it is crystal clear that in the complaint there is no specific allegation regarding cruelty and harassment made on the complainant due to non-fulfillment of demand of dowry and the allegations made against the petitioners are vague and omnibus. It is true that in the alleged date of incident, both the husband and wife sustained injuries due to scuffle over the dispute of purchase of Puja articles and since petitioners are living separately, therefore, in order to prosecute them there has to be some specific allegation. Only vague and omnibus allegations cannot be treated as sufficient material to prosecute them. Only allegations have been levelled against them with a view to harass and torture them.

(9) As discussed above, this Court is of the considered opinion that even if the entire allegations are considered on their face value, it appears that petitioners have been falsely implicated. Under these circumstances, continuation of criminal proceedings against the present petitioners is the sheer abuse of process of law. Thus, it would not be proper to compel them to face the agony of criminal prosecution. As a result, petition is allowed. The impugned FIR vide Crime No.473 of 2022 registered at PS Maharajpura, District Gwalior for offences punishable under Sections 498-A, 323, 34 and enhanced Sections 354, 294, 506 of IPC and under Section 4 of Dowry Prohibition Act as well as other consequential criminal proceedings arising out of aforesaid crime in connection with RCT No.5005 of 2002 pending before Court of JMFC, Gwalior are hereby quashed.

(10) A copy of this order be sent to the concerned Court and police station for information and compliance.

(DEEPAK KUMAR AGARWAL) JUDGE MKB